

ALITO, J., dissenting

should set an example of rational and civil discourse instead of contributing to the worst current trends.

II

Now to what matters.

A

I begin with the question whether *Apodaca* was a precedent at all. It is remarkable that it is even necessary to address this question, but in Part IV–A of the principal opinion, three Justices take the position that *Apodaca* was never a precedent. The only truly fitting response to this argument is: “Really?”

Consider what it would mean if *Apodaca* was never a precedent. It would mean that the entire legal profession was fooled for the past 48 years. Believing that *Apodaca* was a precedent, the courts of Louisiana and Oregon tried thousands of cases under rules allowing conviction by a vote of 11 to 1 or 10 to 2, and appellate courts in those States upheld these convictions based on *Apodaca*.⁹ But according to three Justices in the majority, these courts were deluded.

legitimate” reasons for allowing non-unanimous verdicts and that Louisiana may have retained a version of its old rule for such reasons. He also agrees with the majority that a rule allowing non-unanimous verdicts would be unconstitutional no matter what the State’s reasons. So what is the relevance of the original motivations for the Louisiana and Oregon rules? He offers no explanation. He does opine that allowing such verdicts works to the disadvantage of African-American defendants, but the effect of various jury decision rules is a complex question that has been the subject of much social-science research, none of which the opinion even acknowledges.

⁹For Oregon, see, *e. g.*, *State v. Bowen*, 215 Ore. App. 199, 168 P. 3d 1208 (2007), rev. denied, 345 Ore. 415, 197 P. 3d 1104 (2008), cert. denied, 558 U. S. 815 (2009); *State v. Mayo*, 13 Ore. App. 582, 511 P. 2d 456 (1973). For Louisiana, see, *e. g.*, *State v. Hodges*, 349 So. 2d 250, 260 (La. 1977), cert. denied, 434 U. S. 1074 (1978); see also *State v. Miller*, 2010–718, pp. 42–43 (La. App. 5 Cir. 12/28/11), 83 So. 3d 178, 204, writ denied, 2012–0282 (La. 5/18/12), 89 So. 3d 119, cert. denied, 568 U. S. 1157 (2013); *State v. McElveen*, 2010–0172, pp. 95–96 (La. App. 4 Cir. 9/28/11), 73 So. 3d 1033, 1092, writ denied, 2011–2567 (La. 4/19/12), 85 So. 3d 692, cert. denied, 568 U. S. 1163 (2013).